

Amendment No. 1 to SB1087

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1087

House Bill No. 177*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, is amended by adding the following as a new chapter:

39-7-101.

(a) A person commits an offense if the person is not lawfully present in the United States and knowingly enters or attempts to enter this state, or knowingly entered this state prior to the effective date of this act, and remains in this state.

(b) Except as provided in subsection (c), a first violation of subsection (a) is a Class B misdemeanor, and a second or subsequent violation of subsection (a) is a Class E felony.

(c) A violation of subsection (a) is a Class E felony if the person was excluded pursuant to 8 U.S.C. § 1225(c) or removed pursuant to 8 U.S.C. chapter 12, subchapter V or 8 U.S.C. § 1231(a)(4)(B).

(d) It is not a violation of subsection (a) for a person to remain in this state during the seventy-two-hour period authorized in an order issued pursuant to § 39-7-102 requiring the person to leave this state.

(e) It is an affirmative defense to prosecution under subsection (a) if:

(1) The federal government has granted the defendant lawful presence in the United States or asylum under 8 U.S.C. § 1158;

(2) The defendant's conduct does not constitute a violation of 8 U.S.C. § 1325(a); or

(3) The defendant was approved for benefits under the federal Deferred Action for Childhood Arrivals program between June 15, 2012, and July 16, 2021.

(f) As used in this section, "lawfully present in the United States" means, with respect to a person, the person is a United States citizen or a lawful permanent resident, or the person's presence in the United States has been authorized by the federal government for a specific purpose and for a specified period of authorized stay.

39-7-102.

(a) If, during the initial appearance of a person charged with a violation of § 39-7-101(a), the judge orders the person released from custody, then the judge shall issue a written order discharging the person and requiring the person to, within seventy-two (72) hours of the date of issuance, leave this state.

(b) Upon a person's conviction of an offense under § 39-7-101(a), the judge shall enter an order requiring the person to, within seventy-two (72) hours of the order taking effect, leave this state. Such order takes effect on completion of the term of confinement or imprisonment imposed by the judgment.

39-7-103.

Notwithstanding title 40, chapter 35, part 5; title 41, chapter 1, part 5; or another law regarding release eligibility status and parole, a person who is convicted of an offense under § 39-7-101(a) is not eligible for release prior to service of the entire sentence imposed by the court.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3.

(a) Except as provided in subsection (b), Section 1 of this act takes effect on the nearest January 1 or July 1 after the date on which the earlier of the following circumstances occur, and applies to acts committed on or after that date, the public welfare requiring it:

(1) Issuance of the judgment in a decision of the United States Supreme Court that overrules, in whole or in part, *Arizona v. United States*, 567 U.S. 387 (2012);

(2) Another state's illegal entry law is valid and enforceable for sixty (60) consecutive days; provided, that "another state's illegal entry law" means Iowa Code Ann. Chapter 718C; La. Stat. Ann. § 14:112.12; 21 Okl. St. Ann. § 1795; or Tex. Penal Code Ann. § 51.02, and "valid and enforceable" means the enforceability of the law is not subject to an injunction or other order issued by a court enjoining its enforcement; or

(3) Publication in the Federal Register certifying the ratification of an amendment to the United States Constitution that, in whole or in part, grants the right of states to enforce or regulate immigration as described in Section 1.

(b) If the nearest January 1 or July 1 in subsection (a) is less than one hundred twenty (120) days after the date of the decision, expiration of the sixty-day period, or publication, then Section 1 takes effect on the January 1 or July 1 furthest from the date of the decision, expiration of the sixty-day period, or publication.

(c) The attorney general and reporter shall notify the executive secretary of the Tennessee Code Commission in writing of the date of the issuance of the decision, date of the expiration of the sixty-day period, or date of the publication described in subsection (a) and provide the executive secretary with a copy of the decision, another state's illegal entry law, or publication.

(d) All remaining sections of this act take effect upon becoming a law, the public welfare requiring it.